

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2018-584

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE
AS A PROFESSIONAL COUNSELOR IN THE STATE OF COLORADO OF ALANDA MARTIN,
LICENSE NO. LPC 5229,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board Licensed
Professional Counselor Examiners ("Board") and Alanda Martin ("Respondent"), as
follows:

1. The Board has jurisdiction over Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional Counselor ("LPC") in Colorado on April 15, 2009, and is currently so licensed.
3. This Order is a full and final resolution of case number 2018-584. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or around January 19, 2018, Respondent arrived at an elementary school to provide therapeutic services to a student.
 - b. Staff members raised concerns about Respondent's behavior, including being unsteady on her feet and using unprofessional language. Respondent admitted to being on pain medications and taking a Hydromorphone tablet prior to going into work.
 - c. On or around June 15 and September 4, 2018, Respondent submitted to an evaluation and to a second, more specific evaluation. The evaluators

both recommended Respondent be supervised by Peer Assistance Services and PAS concluded that Respondent is only safe to practice as an LPC with reasonable skill and safety with treatment and monitoring.

d. Respondent failed to notify the Board of her condition that affects her ability to practice safely.

5. By virtue of the facts admitted in paragraph 4 above, the Board finds that Respondent violated section 12-43-222(1)(f)(I) and (II), C.R.S., which state:

12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 43 violates this article if he or she:

(f)(I) Fails to notify the board that regulates his or her profession of a physical or mental illness or condition that affects the person's ability to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his or her care;

(f)(II) Fails to act within the limitations created by a physical or mental illness or condition that renders the person unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his or her care.

6. By virtue of the admissions contained in paragraphs 4 and 5, Respondent is subject to the following disciplinary sanctions that the Board believes are necessary to protect the public health, safety, and welfare.

PROBATION

7. Respondent's license to practice professional counseling shall be placed on probation for a minimum period of three (3) years, commencing from the effective date of this Order. Credit toward satisfying the period of probation shall be given only during such periods of time that Respondent is in total compliance with all provisions of this Order. The prescribed period of probation shall not run during any period of time when:

a. Respondent is not practicing as a LPC or engaged in the practice of professional counseling in the State of Colorado;

b. Respondent is not actively participating in a Board-approved peer assistance services program as set forth below in paragraphs 8 and 9 of this Order; and

- c. Respondent is not otherwise in full compliance with the terms of this Order.

PEER ASSISTANCE SERVICES ("PAS")

8. As a term of this Order and Respondent's probationary status, Respondent shall enter into and successfully complete her PAS Contract for a minimum period of three (3) years, or until successful completion of the probationary terms and conditions ordered herein, whichever occurs later.

9. Respondent shall enter into her PAS Contract within fourteen (14) days from the effective date of this Order. Respondent agrees to cease the practice of professional counseling after fourteen (14) days until such time as Respondent enters into a contract with PAS.

a. Urine/Blood Screens. If required as a term of her PAS Contract, Respondent shall submit to full panel urine or blood tests during participation in PAS, as ordered by the Board, Respondent's employer, or Respondent's treatment program monitor, at a frequency determined by Respondent's treatment program contract. All screens or tests shall be administered and monitored by approved program personnel. An overly dilute or missed urine screen or blood test shall be presumed positive for prohibited substances. Use or ingestion of poppy seeds or hemp oil shall not excuse a positive urine screen or blood test. Respondent must submit satisfactory verified test results for all random urine screening or blood testing conducted as part of Respondent's treatment program with Respondent's application for discharge of the probation period.

b. Other Requirements. Respondent shall comply fully and in a timely manner with all requirements, recommendations, restrictions, and directions of the treatment program, as specified in the PAS Contract signed by Respondent.

c. Releases. Respondent hereby waives any right or claim of confidentiality to any information, test results, or other data pertaining to Respondent's treatment progress, or lack thereof, with PAS, and will execute a release authorizing PAS to release any and all information pertaining to Respondent's case to the Board upon its request. Respondent shall keep all releases current and in effect.

d. Completion of Program. If Respondent satisfactorily completes the treatment program, verification to the Board by PAS of the completion of treatment shall be deemed sufficient, and the requirements set out herein

shall be deemed satisfied, unless other information is reasonably required by the Board to verify Respondent's completion of treatment. It is Respondent's responsibility to ensure that PAS submits verification to the Board of completion of treatment.

e. Withdrawal from Program. Respondent must immediately notify the Board in writing if Respondent withdraws from, is removed from, is terminated from, or otherwise fails to participate fully and satisfactorily in Respondent's treatment program.

TERMS AND CONDITIONS

10. Respondent will strictly observe the prohibitions set forth in section 12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

11. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

12. All expenses incurred or associated with any requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

13. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

14. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-43-212 and 24-4-104(9), C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

15. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

16. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

17. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of section 12-43-222, C.R.S., and shall have the

same force and effect as an order entered after a formal hearing pursuant to sections 12-43-212, 12-43-224, and 24-4-104(9), C.R.S.

18. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

19. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

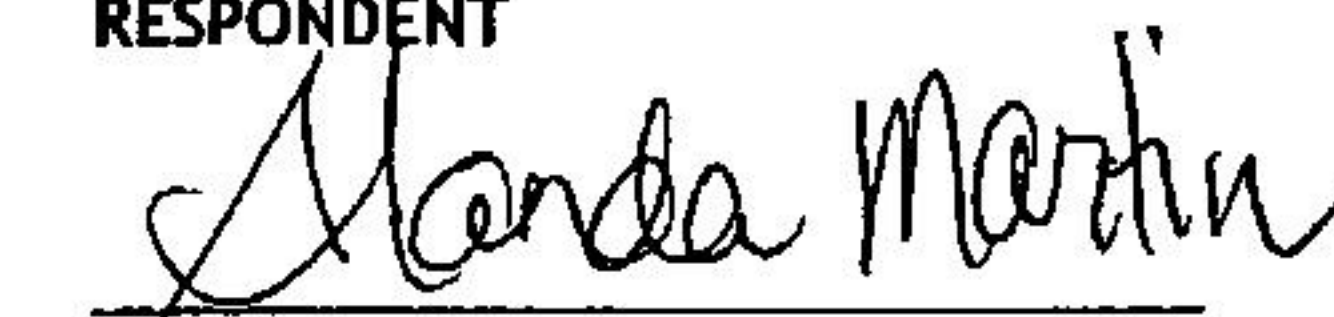
20. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

21. This Order shall be admissible as evidence at any hearing held before the Board.

22. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

RESPONDENT


ALANDA MARTIN
LPC 5229

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS


ARIANA BUSBY
Program Director

Effective this 16th day of

July, 2019.